

How to draft an Order

Instructions

An Order is a document that sets out the decision made by a judge. Sometimes, a judge or Registry staff may ask that you or your lawyer write out an order for the Court. If the Court asks you to provide a draft Order, you can use this Order template to help you draft the Order.

If you and the other person have come to an agreement on all of your family law issues, you can do a Consent Order. You can use the Consent Order templates (Forms F34.02A and F34.02B) to draft the consent between you and the other person.

Completing Your Draft Order

You can fill out this form by hand or you can download and fill out this form electronically at <https://www.court.nl.ca/supreme/rules-practice-notes-and-forms/family/general/> (If you fill out the form electronically, you must still print the form and provide it to the Court).

Orders dealing with child, spousal, partner, parental, or dependant support, must be separated from other types of orders. If you are drafting a support order, fill out this Order – Support (Template). For all other Orders (eg. parenting or property), fill out an Order – Other than Support (Template).

Check off “Final Order” (on the first page) if you are drafting to a final order. Check off “Interim Order on Consent” (on the first page) if you are drafting an interim order.

You only need to attach the pages of this template that apply to you.

If you need more space to fill out any section of this form, attach an extra page and indicate which section is continued on the extra page.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227
Gander: (709) 256-1115
Grand Bank: (709) 832-1720

Grand Falls-Windsor: (709) 292-4260
Happy Valley-Goose Bay: (709) 896-7892
St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788
Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE FILING THE ORDER ---

Order – Support (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____
(Print full name)

- ☐ APPLICANT
☐ CO-APPLICANT

AND: _____
(Print full name)

- ☐ RESPONDENT
☐ CO-APPLICANT

AND: _____
(Print full name)

- ☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT
☐ CO-APPLICANT

BEFORE the Honourable Justice _____, on _____.
(Print Name) (Date: month/day/year)

- ☐ Final Order
☐ Interim Order

IT IS ORDERED THAT under the:

- ☐ Family Law Act (Newfoundland and Labrador):
☐ Divorce Act (Canada):
☐ _____

Child Support

☐ **Basic Table Amount**

It is ordered that there shall be an amount of child support according to the basic table amount as per the *Child Support Guidelines* of (province) _____ as follows:

Payment amount: \$ _____ Payor's annual income: \$ _____

To be paid: (eg. 1st day of every month, weekly, etc.) _____

Paid by: (name) _____ to: (name) _____

For the following child(ren): (names and dates of birth) _____

Commencement date: (month/day/year) _____

OR

☐ **Amount Different from the Basic Table Amount (☐ Shared Parenting or ☐ Split Parenting)**

It is ordered that there shall be an amount of child support that is different from the *Child Support Guidelines* of (province) _____ as follows:

Applicant or Co-Applicant 1's annual income: \$ _____

Payment amount: \$ _____

Paid by: (name) _____ to: (name) _____

For the following child(ren): (names and dates of birth) _____

Commencement date: (month/day/year) _____

--- AND ---

Respondent or Co-Applicant 2's annual income: \$ _____

Payment amount: \$ _____

Paid by: (name) _____ to: (name) _____

To be paid: (eg. 1st day of every month, weekly, etc.) _____

For the following child(ren): (names and dates of birth) _____

Commencement date: (month/day/year) _____

--- SET OFF (if split parenting) or AMOUNT (if shared parenting) ---

Payment amount: \$ _____

Paid by: (name) _____ to: (name) _____

To be paid: (eg. 1st day of every month, weekly, etc.) _____

Commencement date: (month/day/year) _____

OR

☐ Amount Different from the Basic Table Amount

It is ordered that there shall be an amount of child support that is different from the *Child Support Guidelines* of (province) _____ as follows:

Payment amount: \$ _____

To be paid: (eg. 1st day of every month, weekly, etc.) _____

Paid by: (name) _____ to: (name) _____

For the following child(ren): (names and dates of birth) _____

Commencement date: (month/day/year) _____

Payor's annual income: \$ _____ Recipient's annual income: \$ _____

Reason or further details:

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☐ Special and/or Extraordinary Expenses

It is ordered that there shall be an amount of special and/or extraordinary expenses as follows:

Child's Name and date of birth	Description of Expense	Total Amount of Expense (per month)	Payor's Share or Contribution (\$ or %) (per month)	Frequency of Payment	Commencement Date (month/day/year)
		\$			
		\$			
		\$			
		\$			
		\$			

Other special expenses and/or details:

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Paid by: (name) _____ to: (name) _____

Payor's annual income: \$ _____ Recipient's annual income: \$ _____

☐ Parties will send receipts to Support Enforcement.

☐ **Retroactive Child Support**

It is ordered that there shall be an amount of retroactive child support as follows:

Payment amount: \$ _____ per month OR \$ _____ lump sum

Paid by: (name) _____ to: (name) _____ ,

representing the payor's child support obligations from (date: month/day/year) _____

to (date: month/day/year) _____

For the following child(ren): (names and dates of birth) _____

Commencement/Payment date: (month/day/year) _____

☐ **Arrears**

It is ordered that the outstanding child support amount owed, fixed at (arrears) \$ _____ as of (date) (month/day/year) _____ , shall be paid as follows:

Payment amount: \$ _____ per month OR \$ _____ lump sum

Paid by: (name) _____

to: (name or agency, if assigned) _____

For the following child(ren): (names and dates of birth) _____

Commencement/Payment date: (month/day/year) _____

☐ **Disclosure (Payor)**

Pursuant to section 25 of the *Federal Child Support Guidelines* (Canada) (or section 23 of the provincial *Child Support Guidelines Regulations*), (name) _____ shall provide a copy

of the his/her income tax return and notice of assessment to (name) _____

on or before (date: month/day/year) _____ each year, commencing in (year) _____.

☐ **Disclosure (Recipient) (if applicable)**

Pursuant to section 25 of the *Federal Child Support Guidelines* (Canada) (or section 23 of the provincial *Child Support Guidelines Regulations*), (name) _____ shall provide a copy

of the his/her income tax return and notice of assessment to (name) _____

on or before (date: month/day/year) _____ each year, commencing in (year) _____.

☒ **Support Enforcement**

All amounts owing under this Order shall be paid directly to the Director of Support Enforcement at:

Support Enforcement Division

P.O. Box 2006

Corner Brook, Newfoundland and Labrador A2H 6J8

This order shall be enforced by the Director of Support Enforcement pursuant to the *Support Orders Enforcement Act*, 2006, SNL 2006, Chapter S-31.1, unless the Order is withdrawn from the Director, pursuant to s.7 of the Act.

**Support Recalculation**

(You can only check this box if all parties have agreed to basic table amount of child support and either primary residence parenting or split parenting.)

The amount of child support shall be reviewed each year and, where necessary, will be recalculated by the Recalculation Office in accordance with the *Administrative Recalculation of Child Support Regulations*.

COMMENCEMENT DATE OF CHILD SUPPORT:

- (a) The commencement date of child support pursuant to this order is the ____ day of (month) _____ of (year) _____.

REVIEW DATE:

- (b) The child support amount will be reviewed one year after the date set out in clause (a) above.

INCOME INFORMATION REQUIREMENTS AND DUE DATE:

- (c) The person required to pay child support must provide the following income information to the Recalculation Office:
- (i) Personal income tax return for the most recent taxation year; and
 - (ii) Notice of assessment and any reassessments for the most recent taxation year; or
 - (iii) other document(s) acceptable to the Recalculation Office.
- (d) The income information must be provided to the Recalculation Office not later than 45 days before the review date at:

Recalculation Office
9th floor, Sir Richard Squires Building
P.O. Box 2006, Corner Brook, NL A2H 6J8
Tel: (709) 634-4172 | Fax: (709) 634-4155
E-mail: recalculation@gov.nl.ca

RECALCULATION – WHERE INCOME INFORMATION IS PROVIDED

- (e) If satisfactory income information is received by the Recalculation Office at least 45 days before the review date, the Recalculation Office will issue a Recalculation Notice setting out the proposed recalculated child support amount.
- (f) If, as a result of the recalculation, the amount of child support would increase or decrease less than \$5.00 per month, the Recalculation Office will not recalculate the amount of child support. The Recalculation Office will notify the parties that there will be no change for that year.

RECALCULATION – WHERE INCOME INFORMATION IS NOT PROVIDED

- (g) If satisfactory income information is not received by the Recalculation Office at least 45 days before the review date, the Recalculation Office will issue a Recalculation Notice setting out the proposed recalculated child support amount. This amount will be:

(i) the income amount on which the most recent child support order, agreement, or Recalculation Notice was based; plus

(ii) 20% of the payor's income as determined under (g)(i) above.

EFFECTIVE DATE OF RECALCULATED AMOUNT

(h) Unless a Notice of Objection is filed, the recalculated amount of child support stated in the Recalculation Notice will come into effect on the date set out in the Recalculation Notice. The Recalculation Office will file a copy of the Recalculation Notice with the court that made the child support order (or where the agreement is filed) and the Support Enforcement Agency.

(i) The recalculated amount of child support is payable to the Support Enforcement Agency:

Support Enforcement Division
2nd floor, Sir Richard Squires Building
P.O. Box 2006 , Corner Brook, NL A2H 6J8
Tel: (709) 637-2608

OBJECTION TO RECALCULATION

(j) If a party objects to the change in child support amount in the Recalculation Notice, the party must file a Notice of Objection with the court that made the child support order, or where the agreement was filed. The party must also provide a copy of the Notice of Objection to the Recalculation Office.

(k) The Notice of Objection must be filed within 30 days after the Notice of Recalculation is deemed to be received.

(l) If a Notice of Objection is filed, no change shall be made to the amount of child support payable unless:

(i) a court order is made at the conclusion of the objection hearing; or

(ii) the Notice of Objection is withdrawn before objection hearing, in which case the recalculated amount of child support is considered to have come into effect on the date set out in the Recalculation Notice.

CHANGE OF CONTACT INFORMATION

Parties must notify the Recalculation Office of any change to their mailing address, email address, telephone number, or fax number within 10 days of the change.

☐ Other:

Spousal, Partner, Parental, or Dependant Support

☐ No Spousal, Partner, Parental, and/or Dependant Support

There will be no spousal, partner, parental, and/or dependant support to either party.

☐ Ongoing Support

It is ordered that an amount of

☐ Spousal support ☐ Parental support ☐ Partner support ☐ Dependant support

shall be paid as follows:

Payment amount: \$ _____ per month

Paid by: (name) _____ to: (name) _____

For the following person(s): (names) _____

Commencement date: (month/day/year) _____

Duration (if applicable): _____

Review date (if applicable): (month/day/year) _____

Nature of Review (if applicable): _____

☐ Retroactive Support

It is ordered that an amount of retroactive

☐ Spousal support ☐ Parental support ☐ Partner support ☐ Dependant support

shall be paid as follows:

Payment amount: \$ _____ per month

Paid by: (name) _____ to: (name) _____, representing

the payor's support obligations from (date: month/day/year) _____ to (date: month/day/year) _____

For the following person(s): (names) _____

Commencement date: (month/day/year) _____

☐ Arrears

It is ordered that the outstanding support amount owed, fixed at (arrears) \$ _____ as of (date: month/day/year) _____, shall be paid off as follows:

Payment amount: \$ _____ per month OR \$ _____ lump sum

Paid by: (name) _____

to: (name or agency, if assigned) _____

Commencement/Payment date: (month/day/year) _____

☐ It is ordered that there shall be a financial arrangement for support as follows:

Order Issued at:	FOR COURT USE ONLY
Location: Supreme Court in _____, Newfoundland and Labrador	
Date: _____	
_____ Justice or Registry Clerk of the Supreme Court of Newfoundland and Labrador	